



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

[HB 2931](#): civil rights advisory board; continuation

BIASIUCCI FLOOR AMENDMENT

1. Separates the enabling statute for the Civil Rights Advisory Board from the Civil Rights Division of the Department of Law.
2. Decreases the continuation length for the Board from 2035 to 2031.

BIASIUCCI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2931
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 41-1401, Arizona Revised Statutes, is amended
3 to read:

4 41-1401. Civil rights division: definition

5 A. ~~[There is created]~~ The civil rights division within the
6 department of law ~~[which shall include the Arizona civil rights advisory~~
7 ~~board] [IS ESTABLISHED]. [The board shall be composed of seven members~~
8 ~~who shall be appointed by the governor. Not more than four of the members~~
9 ~~shall at any one time be of the same political party. Each member shall~~
10 ~~serve for a term of three years. Of the members of the board first~~
11 ~~appointed, two shall be appointed for terms ending January 31, 1966, two~~
12 ~~for terms ending January 31, 1967, and three for terms ending January 31,~~
13 ~~1968. Thereafter, the terms shall expire on the third Monday in January~~
14 ~~of the appropriate year.~~

15 B. ~~An appointment to fill a vacancy shall be subject to the same~~
16 ~~limitation with respect to party affiliations as the original appointment.~~

17 C. ~~The board shall elect from its membership a chairman and vice~~
18 ~~chairman. The vice chairman shall act as chairman in the absence or~~
19 ~~disability of the chairman, or in the event of a vacancy in that office.~~

20 D. ~~Four members of the board shall constitute a quorum, except that~~
21 ~~if the chairman appoints a subcommittee of the board a majority of the~~
22 ~~members of the subcommittee shall constitute a quorum. The concurrence of~~
23 ~~four of the members when in session as a board shall be the act of the~~
24 ~~board.~~

25 E. ~~Each member shall receive compensation as determined pursuant to~~
26 ~~section 38-611 for each day in which he participates in meetings, but not~~
27 ~~to exceed one thousand dollars in any fiscal year.]~~

1 ~~[F.] [B.]~~ For the purposes of this chapter, ~~["board" means the~~
2 ~~Arizona civil rights advisory board and]~~ "division" means the civil rights
3 division within the department of law.>>

4 <<Sec. 2. Title 41, chapter 9, article 1, Arizona Revised Statutes,
5 is amended by adding section 41-1401.01, to read:

6 41-1401.01. Arizona civil rights advisory board; terms;
7 vacancies; organization; quorum; compensation;
8 definition

9 [A. THE ARIZONA CIVIL RIGHTS ADVISORY BOARD IS ESTABLISHED IN THE
10 DIVISION. THE BOARD SHALL BE COMPOSED OF SEVEN MEMBERS WHO SHALL BE
11 APPOINTED BY THE GOVERNOR. NOT MORE THAN FOUR OF THE MEMBERS SHALL AT ANY
12 ONE TIME BE OF THE SAME POLITICAL PARTY. EACH MEMBER SHALL SERVE FOR A
13 TERM OF THREE YEARS. THE TERMS SHALL EXPIRE ON THE THIRD MONDAY IN
14 JANUARY OF THE APPROPRIATE YEAR.

15 B. AN APPOINTMENT TO FILL A VACANCY SHALL BE SUBJECT TO THE SAME
16 LIMITATION WITH RESPECT TO PARTY AFFILIATIONS AS THE ORIGINAL APPOINTMENT.

17 C. THE BOARD SHALL ELECT FROM ITS MEMBERSHIP A CHAIRPERSON AND VICE
18 CHAIRPERSON. THE VICE CHAIRPERSON SHALL ACT AS CHAIRPERSON IN THE ABSENCE
19 OR DISABILITY OF THE CHAIRPERSON, OR IN THE EVENT OF A VACANCY IN THAT
20 OFFICE.

21 D. FOUR MEMBERS OF THE BOARD SHALL CONSTITUTE A QUORUM, EXCEPT THAT
22 IF THE CHAIRPERSON APPOINTS A SUBCOMMITTEE OF THE BOARD A MAJORITY OF THE
23 MEMBERS OF THE SUBCOMMITTEE SHALL CONSTITUTE A QUORUM. THE CONCURRENCE OF
24 FOUR OF THE MEMBERS WHEN IN SESSION AS A BOARD SHALL BE THE ACT OF THE
25 BOARD.

26 E. EACH MEMBER SHALL RECEIVE COMPENSATION AS DETERMINED PURSUANT TO
27 SECTION 38-611 FOR EACH DAY IN WHICH THE MEMBER PARTICIPATES IN MEETINGS,
28 BUT NOT TO EXCEED \$1,000 IN ANY FISCAL YEAR.

29 F. FOR THE PURPOSES OF THIS CHAPTER, "BOARD" MEANS THE ARIZONA
30 CIVIL RIGHTS ADVISORY BOARD.]>>

31 Sec. 3. Repeal

32 Section 41-3026.11, Arizona Revised Statutes, is repealed.

33 Sec. 4. Title 41, chapter 27, article 2, Arizona Revised Statutes,
34 is amended by adding section ~~[41-3034.11]~~ [41-3030.27], to read:

35 ~~[41-3034.11.]~~ [41-3030.27.] Arizona civil rights advisory
36 board; termination July 1, 2030

37 A. THE ARIZONA CIVIL RIGHTS ADVISORY BOARD TERMINATES ON JULY 1,
38 ~~2034~~ [2030].

39 B. ~~[TITLE 41, CHAPTER 9, ARTICLE 1]~~ [SECTION 41-1401.01] AND THIS
40 SECTION ARE REPEALED ON JANUARY 1, ~~2035~~ [2031].

41 Sec. 5. Purpose

42 Pursuant to section 41-2955, subsection B, Arizona Revised Statutes,
43 the legislature continues the Arizona civil rights advisory board to
44 conduct hearings ~~[and investigations regarding charges of alleged~~
45 ~~discrimination]~~ [, obtain information and report on civil rights issues
46 that impact Arizonans] as prescribed by state law and to perform those
47 other functions as prescribed by law.

House Amendments to H.B. 2931

1 Sec. 6. Retroactivity

2 Sections ~~[1]~~ [3] and ~~[2]~~ [4] of this act apply retroactively to
3 from and after July 1, 2026.

4 Enroll and engross to conform

5 Amend title to conform

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